

Unifund CCR, LLC v. Shawna Sylvester, 20LC-0004

Hearing: Claim of Exemption

Date: August 19, 2026

The Court is currently unable to determine the exemption claim because the debtor's claim of exemption and financial statement have not been filed with the Court.

"After receiving the notice of the hearing and before the date set for the hearing, the levying officer shall file the claim of exemption and the notice of opposition to the claim of exemption with the court." (Code Civ. Proc., § 706.105(e).)

These items are generally submitted along with a memorandum from the levying officer setting forth how much of the judgment debtor's funds its office is holding. The judgment creditor has filed its notice of hearing and notice of opposition to claim of exemption, but no claim of exemption or financial statement are on file.

PRACTICE POINTER: The judgment creditor should also file with the court copies of the debtor's claim of exemption and financial statement. (The debtor is only required to file these papers with the levying officer; thus, the court will not be able to review them unless they are filed by the judgment creditor.)

(Ahart, Cal. Practice Guide: Enforcing Judgments and Debts (The Rutter Group 2026) ¶ 11:262.)

This same tentative was posted prior to the hearing on July 22, 2026, and directed the judgment creditor to file a copy of the claim of exemption and the financial statement with the Court at least two weeks prior to this hearing and also to provide notice of this continued hearing. Nothing new has been submitted. However, counsel did not appear at the last hearing.

The Court therefore continues this matter to September 23, 2026. The clerk will give notice.